

demurrer to a standalone cause of action for declaratory relief as to whether plaintiffs' insurer had a conflict of interest that required appointment of *Cumis* counsel in an underlying tort lawsuit against the plaintiffs defended and settled by the insurer, determined adverse to plaintiffs]; *Bennett v. Hibernia Bank* (1956) 47 Cal.2d 540, 549–550 ["It is the general rule that in an action for declaratory relief the complaint is sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties . . . and requests that the rights and duties be adjudged. [Citation.] If these requirements are met, the court must declare the rights of the parties whether or not the facts alleged establish that the plaintiff is entitled to a favorable declaration."].)

Defendants' demurrer is similarly unsupported as it pertains to the injunctive relief cause of action. Defendants make no arguments as to why injunctive relief is barred by the statute of limitations in its entirety, in light of the continuous accrual doctrine as discussed above regarding the contract and misrepresentation claims. They cite no authority that injunctive relief, an equitable remedy, is subject to the bar of the economic loss rule. Based on the Court's ruling that Plaintiff has alleged facts sufficient to support some substantive claims for relief as set forth above, defendants have not made reasoned arguments supported by authority that injunctive relief is a remedy barred as a matter of law so as to support the Court sustaining a demurrer to the s cause of action.

The demurrers to the ninth, tenth, and eleventh causes of action are **overruled**.

20. 9:00 AM CASE NUMBER: L24-03879
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. BRITTNEE CRUZ
***HEARING ON MOTION IN RE: VACATE JUDGEMENT**
FILED BY:

TENTATIVE RULING:

This case is re-assigned to Dept. 14, Hon. Kirk Athanasiou, Presiding. This motion is continued, *sua sponte*, to January 12, 2027 at 9:00 a.m. in Department 14, which is located at the George D. Carroll Courthouse, 100 37th St., Richmond, CA 94805. Parties are ordered to appear in-person or remotely via Zoom. No appearance is required on September 9, 2026.

21. 9:00 AM CASE NUMBER: N26-0485
CASE NAME: PETITION OF:JOSE EFREN GRAJEDA
HEARING ON PETITION IN RE: FOR AN ORDER RELIEVING PETITIONER FROM GOVERNMENT ENTITY CLAIM FILING REQUIREMENTS
FILED BY:

TENTATIVE RULING:

The Court continues the hearing on this motion, *sua sponte*, to October 14, 2026 at 9:00 a.m. Briefing is closed. No appearance is required at the hearing on September 9, 2026.

22. 9:00 AM CASE NUMBER: N26-0851

CASE NAME: PETITION OF:LVNV ASSISTANCE, LLC

HEARING IN RE: INITIAL PETITION FILED

FILED BY:

TENTATIVE RULING:

Summary

On June 7, 2015, Erik Hornbuckle ("Hornbuckle"), who was a minor at the time of the incident, was attacked by a dog when he visited the home of a family friend. He suffered significant facial wounds, including a laceration to his face, eyes and cheek. Through his guardian *ad litem*, Hornbuckle settled this matter with the defendants and entered into a compromise of his claim as a minor. The settlement included a single-premium deferred annuity purchased with the proceeds of the settlement, \$170,419.89. The annuity contemplated a structure settlement that paid funds to Hornbuckle until he turned 30. Hornbuckle now seeks to convert the structured settlement into a one-time payout.

Petitioner LVNV Assistance LLC, a Delaware Company, seeks approval of the transfer of the structured settlement amounts as set forth herein. **Petitioner's counsel is ordered to appear. Mr. Erik Hornbuckle is ordered to appear.** Appearance may be made remotely.

Background

The underlying structured settlement was established to resolve a tort claim involving Erik Hornbuckle, who was a minor at the time of settlement but has since reached majority. He is now 19. The settlement provides for semi-annual payments of \$15,000 commencing January 5, 2025 (age 18) and continuing for four years through July 5, 2028, plus lump sums of \$40,000 due January 5, 2032 (age 25) and \$83,062.18 due January 5, 2037 (age 30). All payments are guaranteed and funded by an annuity purchased from Metropolitan Tower Life Insurance Company, at a cost of \$170,419.89 to fund total guaranteed payouts of \$243,062.18.

Petitioner LVNV Assistance, LLC now seeks approval to transfer payment rights totaling **\$183,062.18**, specifically excluding the first four semi-annual payments (apparently already paid or retained by the Hornbuckle). The transferred payments consist of four remaining semi-annual \$15,000 payments from January 5, 2027 through July 5, 2028 (\$60,000 total), the \$40,000 age-25 payment, and the \$83,062.18 age-30 payment. In exchange, Hornbuckle will receive a lump sum of **\$105,000.00**, with no deductions for fees or commissions.

The financial structure reveals a discount rate of 10.15% applied to determine the purchase price, compared to the IRS valuation rate of 4.60% used to calculate a present value of \$138,640.97. The quotient of 75.73% indicates the Hornbuckle receives approximately 76 cents per dollar of present value, representing an effective annual interest rate of 10.15% if characterized as a loan. This substantial spread between the IRS valuation rate and the transaction discount rate results in the Hornbuckle forfeiting \$78,062.18 in nominal future value.

Jurisdiction is predicated on California Insurance Code § 10135(c), alleging either that the Hornbuckle was domiciled in California when the transfer agreement was signed, or alternatively, that the Hornbuckle was domiciled in a state without a structured settlement transfer statute while either MetLife Assignment Company, Inc. (the obligor) or Metropolitan Tower Life Insurance Company (the annuity issuer) maintains California authorization. Both insurance entities are authorized to do

business in California.

The petition invokes the statutory framework of California Insurance Code §§ 10134-10141.5 and 26 U.S.C. § 5891(b)(2)(A), which require the court to find that the transfer is "fair and reasonable and in the best interests of the Hornbuckle" considering any dependents, and that it complies with applicable law without contravening court orders or statutes. The petition alleges satisfaction of these standards under §§ 10137(a)(1), 10139.5(a)(1), and 26 U.S.C. § 5891(b)(2)(A)(ii), but provides minimal substantive justification for how the 10.15% discount rate serves the Hornbuckle's best interests.

Procedural compliance allegations include: (a) written advice to seek independent professional advice with waiver or receipt documented per § 10139.5(a)(2); (b) provision of disclosure statements complying with § 10136(b) and transfer agreement compliance with §§ 10136(c) and 10138 per § 10139.5(a)(3); (c) Hornbuckle's understanding of terms per § 10139.5(a)(5); (d) Hornbuckle's knowing waiver of cancellation rights per § 10139.5(a)(6); and (e) notification to Hornbuckle of the right to independent counsel/accountant/actuary with transferee's obligation to pay fees up to \$1,500 regardless of outcome per § 10139.5(h). The petition also alleges compliance with § 10139.5(f)(2) notification requirements and attachment of required documents including prior petitions, transfer agreement, disclosure statement, dependents' listing, annuity contract, qualified assignment, and underlying settlement agreement.

The petition acknowledges the underlying settlement contains anti-assignment language but cites *Henderson Receivables Origination LLC v. Sioteco* (2009) 173 Cal. App. 4th 1059, for the proposition that such provisions do not bar court-approved transfers where no interested parties object. This appears legally correct under California precedent, provided all statutory requirements are met and the court independently approves the transfer.

Analysis

While the petition facially alleges compliance with all statutory requirements, several concerns warrant scrutiny before granting approval.

First, the 10.15% discount rate appears to significantly exceeds market rates and the IRS valuation benchmark, resulting in a substantial reduction from the \$138,640.97 present value to the \$105,000 purchase price.

Second, the court is concerned whether Hornbuckle, who is only 19 years old, received independent professional advice specifically addressing whether this discount rate is commercially reasonable, and whether the Hornbuckle understands he is forfeiting approximately \$78,062.18 in future value (the difference between the \$183,062.18 face value of transferred payments and the \$105,000 purchase price).

Third, the court seeks confirmation the status of the first four semi-annual payments (totaling \$60,000) to ensure they were properly paid to the Hornbuckle and not subject to prior assignment or encumbrance.

While the petition appears technically sufficient to proceed to hearing, the Court would like to withhold approval contingent upon verification of the independent advice, confirmation of Hornbuckle's understanding of the financial impact, and evidence that the transfer serves the Hornbuckle's best interests despite the steep discount. Alternatively, the Court inquires whether Hornbuckle is sufficiently aware of the foregoing issues and is prepared to waive the benefit of future

value in exchange for a present liquidation of his structured settlement.

Ruling

1. The Court orders the appearance of Erik Hornbuckle, either in person or remotely, at the hearing in order for the court to address the above concerns with him.
2. The Court will issue a ruling at the hearing.
3. Counsel for LVNV is ordered to appear. Appearance can be done remotely.

Discovery Law & Motion

23. 9:01 AM CASE NUMBER: C24-01877

CASE NAME: ZACHARY MINOR VS. CRAIG HOWARD

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET TWO**

FILED BY: MINOR, ZACHARY

TENTATIVE RULING:

Summary

This ruling addresses the following discovery motions, listed on Lines 23 and 24 of the Court's calendar:

1. Plaintiffs Zachary and Angela Minor's Motion to Compel Further Responses to Plaintiff's Request for Admissions, Set Two, filed April 14, 2026; and
2. Plaintiffs Zachary and Angela Minor's Motion to Compel Further Responses to Plaintiff's Special Interrogatories, Set Two, filed April 14, 2026.

The Court has reviewed the motions and the accompanying "meet and confer" correspondence exchanged between Plaintiff Zachary Minor and counsel for Defendant Craig Howard. The Court notes that no opposition has been filed by Defendant.

However, the Court's records contain no Proof of Service demonstrating that Plaintiffs served either motion upon Defendant Craig Howard or his counsel of record, Gordon Rees.

Both motions are **dismissed** without prejudice.

Analysis

The Court is aware that Plaintiffs are proceeding without an attorney in their lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally